

Scope of Work (SOW) for Replace & Upgrade CLC HVAC

Sioux Falls, SD

Project #: 438-23-450

1. Background:

- 1.1. The Sioux Falls VA Health Care System (SFVAHCS) requires the replacement and upgrade of the Community Living Centers (CLC) HVAC systems. The existing HVAC systems will be removed and replaced with a new systems adequate to the requirements of the spaces being served.

2. General

- 2.1. Title of Project: Replace & Upgrade CLC HVAC
- 2.2. Scope of Work: Replace and Upgrade Community Living Centers (CLC) HVAC systems at the VA Sioux Falls Health Care System in Sioux Falls, SD by providing all labor, materials, tools, and supervision necessary to prepare site for Project Number 438-23-450, Upgrade CLC HVAC in accordance with statement of work, specifications, and drawings.

All work shall be completed in compliance with the most current version of all applicable codes including, but not limited to, OSHA, the International Plumbing Code, NFPA 101, International Building code, VA Barrier Free Design Guide and VA guidelines for patient safety and infection control. Construction shall be completed according to the construction documents and specifications. See section J for additional information.

Background: The project is located at the SFVAHCS campus. The address for the facility is 2501 West 22nd Street Sioux Falls, SD 57105.

The purpose of this project is to replace the HVAC systems on the 2nd and 3rd floors of the CLC located in building 5 on the SFVAHCS campus. The construction shall build per the design completed by the Architect and Engineer of record.

The contractor shall follow all VA rules and regulations concerning infection control and patient safety as outlined in the general requirements during the project. The VA requires the contractor to give notice of upcoming hot work. A permit will be issued by engineering service to the contractor upon request prior to any hot work. Working hours shall be during normal VA working hours, however, any work activities that could disrupt the daily functions of the hospital shall occur during night hours as outlined in the period of performance.

The contractor is required to give a twenty (20) day notice prior to interrupting utilities. Contractors are required to examine the areas affected by the interruption prior to starting the work and post signage within the affected areas.

- 2.3. Scope of Construction: Replace & Upgrade CLC HVAC systems.
- 2.4. Performance Period: The contractor shall complete all work required under this SOW in 547 calendar days or less from date of full notice to proceed, unless otherwise directed by the Contracting Officer Representative (COR) and/or Contracting Officer (CO). If the contractor proposes an earlier completion date, and the Government accepts the contractor's proposal, the contractor's proposed completion date shall prevail. Work at the Government site shall not take place on Federal holidays or weekends unless requested and approved by the COR and CO. Night hours can start

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no earlier than 4:30 PM and must minimize disruption to staff and patients adjacent to the construction boundaries.

3. Pre-Construction Conference

- 3.1. If the Contracting Officer decides to conduct a preconstruction conference, the successful offeror will be notified and will be required to attend. The Contracting Officer's notification will include specific details regarding the date, time, and location of the conference, any need for attendance by subcontractors, and information regarding the items to be discussed.

4. General Requirements

- 4.1. Project shall have a dedicated on-site superintendent managing the construction effort in accordance with Revolutionary FAR Overhaul (RFO) Part 52.236-6 Superintendence by the Contractor.
- 4.2. For every task, the contractor shall identify in writing all necessary subtasks (if any), associated costs by task, and along with associated sub-milestone dates. The contractor's subtask structure shall be reflected in the technical proposal and detailed work plan.
- 4.3. All written deliverables shall be phrased in layperson language. Statistical and other technical terminology shall not be used without providing a glossary of terms.
- 4.4. Where a written milestone deliverable is required in draft form, the VA will complete their review of the draft deliverable within 14 calendar days from the date of receipt. The contractor shall have 14 calendar days to deliver the final deliverable from date of receipt of the Government's comments unless specifically outlined.
- 4.5. **Phasing:** The project will be completed in two phases. Phase one will include all the work necessary to occupy 3rd floor CLC, and any work on the fourth and fifth floor necessary to complete phase 1 work. This includes but is not limited to any plumbing, mechanical, hydronic piping, electrical power, electrical wiring, and ductwork. The construction of Phase 2 will include all the work necessary to occupy 2nd floor CLC. A partial notice to proceed will be granted upon award in order to process shop drawings and procure equipment and materials. Full notice to proceed will not be given until all long lead time equipment/materials are on hand. The VA will require up to 6 weeks to vacate 3rd floor CLC. The VA will also require up to 6 weeks between phases to occupy 3rd floor CLC and vacate 2nd floor CLC.

5. Specific Mandatory Tasks and Associated Deliverables

- 5.1. Task One: The contractor shall provide a detailed work plan and briefing for the VA project team, which presents the contractor's plan for completing the task order. The contractor's plan shall be responsive with this SOW and describe in detail the approach to be used for each aspect of the task order as defined here. Shop drawings fully describing components to be installed shall be submitted for review and acceptance.
 - 5.2. The contractor is expected to keep a complete set of official drawings on the construction site where any/all red lines are recorded. This official red lined drawing set is to be handed in at the completion of the project for the A/E to provide a complete set of as-builts record drawings.
 - 5.3. Contractor to provide submittal registry (Submittal Exchange and/or Procore) for use of all team members including (but not limited to): Contractor, Sub-Contractor,
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Supplier, AE, and VA team members. The submittal registry shall be provided for entire duration of project.

- 5.4. The contractor is expected to attend weekly project update meetings as scheduled by the COR. It is the contractor's responsibility to prepare an agenda and distribute minutes for each meeting and come prepared to discuss the current disposition of the project to include:
 - Safety
 - Schedule-planned vs actual progress
 - Outstanding requests made to the Government
 - Current status of project
 - Future plans and scheduling
 - Upcoming events such as utility interruption, excavation, hot work, etc.
 - Any new business from the participants within the weekly meeting.
- 5.5. The contractor is to provide the COR an updated gphant chart schedule every month. Schedules shall be provided regardless of outstanding RFIs, RFPs, change orders, etc. A current schedule of tasks is required for any contractor(s) working on campus.
- 5.6. The contractor shall maintain a system of internal controls to manage, preserve, and protect property in their possession. Safeguarding staff, visitors, and other personnel who may be exposed to the contractor's operations. Additionally, the contractor shall, at their own expense, repair any damages to the works or property caused by their negligence or failure to fulfill their obligations.
- 5.7. The contractor is to provide a bid on all materials, labor, testing, disposal, and means and methods to provide the VA with a complete and operational facility described within the drawing set and specs provided. Prices shall be fair and reasonable and within the value of the current market. Contractors shall include the following items in their bids:
 - After hour/weekend work as required for utility outages or loud, interrupting work.
- 5.8. Deliverable One: A detailed work plan and briefing. Shop drawings fully describe all components and work products. All shop drawings shall be completely submitted no later than 3 months following notice to proceed.
- 5.9. Task One: Construct Research Building HVAC project per plans & specifications.
- 5.10. Deliverable Two: A completed project based on the plans and specifications.
- 5.11. Task Two: Provide two hard copies of each as-built drawings to AE firm. In red ink record all items that are different or do not match the project plan set.

6. Environmental

- 6.1. Wherever feasible, the design will incorporate "green" environmental principles. These include recycling materials and design of systems for energy conservation in accordance with the VA's environmental policy focusing on integrating sustainability, compliance, and environmental justice into its mission through directives like VA Directive 0057 and programs like Green Environmental Management Systems

(GEMS), emphasizing waste reduction, energy efficiency (ENERGY STAR), pollution prevention, and sustainable building (LEED).

- 6.2. Key goals include minimizing hazardous materials, managing electronics responsibly, conserving resources, and ensuring compliance with federal laws, while also addressing disproportionate impacts on vulnerable communities.
- 6.3. All materials that are recycled shall be logged and the log shall be provided to the COR.
- 6.4. All refrigerants shall be recovered per SD EPA and Federal EPA regulations and shall be reported to the COR on the Refrigerant Removal Verification Statement form.

7. Changes to Scope of Work

- 7.1. Any changes to this SOW shall be authorized and approved only through written correspondence from the CO. A copy of each change will be kept in a project folder along with all other products of the project. Costs incurred by the contractor through the actions of parties other than the CO shall be borne by the contractor.

8. Reporting Requirements

- 8.1. The contractor shall provide the COR with monthly written progress reports submitted electronically. These are due to the COR by the second workday following the end of each calendar month, throughout the project's duration.
- 8.2. The progress report shall cover all work completed during the preceding month and shall present the work to be accomplished during the subsequent month. This report shall also identify any problems that arose, along with a statement explaining how the problem was resolved. This report shall also identify any problems that have arisen but have not been completely resolved, with an explanation.

9. Confidentiality and Nondisclosure

- 9.1. It is agreed that:
 - The preliminary and final deliverables, all associated working papers, application source code, and other material deemed relevant by VA and generated by the contractor in the performance of this task order, are the exclusive property of the U.S. Government and shall be submitted to the CO at the conclusion of the task order.
 - The CO will be the sole authorized official to release, verbally or in writing, any data, draft deliverables, final deliverables, or any other written or printed materials pertaining to this task order. No information shall be released by the contractor. Any request for information relating to this task order, presented to the contractor, shall be submitted to the CO for response.
 - Press releases, marketing material, or any other printed or electronic documentation related to this project, shall not be publicized without the written approval of the CO.

10. NARA Records Management Language for Contracts (July 10, 2019)

<https://www.archives.gov/records-mgmt/policy/records-mgmt-language>

Records Management Obligations

A. Applicability

This clause applies to all Contractors whose employees create, work with, or otherwise handle Federal records, as defined in Section B, regardless of the medium in which the record exists.

B. Definitions

“Federal record” as defined in 44 U.S.C. § 3301, includes all recorded information, regardless of form or characteristics, made or received by a Federal agency under Federal law or in connection with the transaction of public business and preserved or appropriate for preservation by that agency or its legitimate successor as evidence of the organization, functions, policies, decisions, procedures, operations, or other activities of the United States Government or because of the informational value of data in them.

The term Federal record:

1. includes [Agency] records.
2. does not include personal materials.
3. applies to records created, received, or maintained by Contractors pursuant to their [Agency] contract.
4. may include deliverables and documentation associated with deliverables.

**Per VHA Records Manager – Only add the line items below that pertain to the contract.
(10/22/2020)**

C. Requirements

1. Contractor shall comply with all applicable records management laws and regulations, as well as National Archives and Records Administration (NARA) records policies, including but not limited to the Federal Records Act (44 U.S.C. chs. 21, 29, 31, 33), NARA regulations at 36 CFR Chapter XII Subchapter B, and those policies associated with the safeguarding of records covered by the Privacy Act of 1974 (5 U.S.C. 552a). These policies include the preservation of all records, regardless of form or characteristics, mode of transmission, or state of completion.

2. In accordance with 36 CFR 1222.32, all data created for Government use and delivered to, or falling under the legal control of, the Government are Federal records subject to the provisions of 44 U.S.C. chapters 21, 29, 31, and 33, the Freedom of Information Act (FOIA) (5 U.S.C. 552), as amended, and the Privacy Act of 1974 (5 U.S.C. 552a), as amended and must be managed and scheduled for disposition only as permitted by statute or regulation.

3. In accordance with 36 CFR 1222.32, Contractor shall maintain all records created for Government use or created in the course of performing the contract and/or delivered to, or under the legal control of the Government and must be managed in accordance with Federal law. Electronic records and associated metadata must be accompanied by sufficient technical documentation to permit understanding and use of the records and data.

4. [FACILITY] and its contractors are responsible for preventing the alienation or unauthorized destruction of records, including all forms of mutilation. Records may not be removed from the legal custody of [FACILITY] or destroyed except for in accordance with the provisions of the

agency records schedules and with the written concurrence of the Head of the Contracting Activity. Willful and unlawful destruction, damage or alienation of Federal records is subject to the fines and penalties imposed by 18 U.S.C. 2701. In the event of any unlawful or accidental removal, defacing, alteration, or destruction of records, Contractor must report to [FACILITY]. The agency must report promptly to NARA in accordance with 36 CFR 1230.

5. The Contractor shall immediately notify the appropriate Contracting Officer upon discovery of any inadvertent or unauthorized disclosures of information, data, documentary materials, records or equipment. Disclosure of non-public information is limited to authorized personnel with a need-to-know as described in the [contract vehicle]. The Contractor shall ensure that the appropriate personnel, administrative, technical, and physical safeguards are established to ensure the security and confidentiality of this information, data, documentary material, records and/or equipment is properly protected. The Contractor shall not remove material from Government facilities or systems, or facilities or systems operated or maintained on the Government's behalf, without the express written permission of the Head of the Contracting Activity. When information, data, documentary material, records and/or equipment is no longer required, it shall be returned to [FACILITY] control, or the Contractor must hold it until otherwise directed. Items returned to the Government shall be hand carried, mailed, emailed, or securely electronically transmitted to the Contracting Officer or address prescribed in the [contract vehicle]. Destruction of records is EXPRESSLY PROHIBITED unless in accordance with Paragraph (4).

6. The Contractor is required to obtain the Contracting Officer's approval prior to engaging in any contractual relationship (sub-contractor) in support of this contract requiring the disclosure of information, documentary material and/or records generated under, or relating to, contracts. The Contractor (and any sub-contractor) is required to abide by Government and [FACILITY] guidance for protecting sensitive, proprietary information, classified, and controlled unclassified information.

7. The Contractor shall only use Government IT equipment for purposes specifically tied to or authorized by the contract and in accordance with [FACILITY] policy.

8. The Contractor shall not create or maintain any records containing any non-public [FACILITY] information that are not specifically tied to or authorized by the contract.

9. The Contractor shall not retain, use, sell, or disseminate copies of any deliverable that contains information covered by the Privacy Act of 1974 or that which is generally protected from public disclosure by an exemption to the Freedom of Information Act.

10. The [FACILITY] owns the rights to all data and records produced as part of this contract. All deliverables under the contract are the property of the U.S. Government for which [FACILITY] shall have unlimited rights to use, dispose of, or disclose such data contained therein as it determines to be in the public interest. Any Contractor rights in the data or deliverables must be identified as required by FAR 52.227-11 through FAR 52.227-20.

11. Training. All Contractor employees assigned to this contract who create, work with, or otherwise handle records are required to take [FACILITY]-provided records management training. The Contractor is responsible for confirming training has been completed according to agency policies, including initial training and any annual or refresher training.

[Note: To the extent an agency requires contractors to complete records management training,

the agency must provide the training to the contractor.]

D. Flow down of Requirements to Subcontractors

1. The Contractor shall incorporate the substance of this clause, its terms and requirements including this paragraph, in all subcontracts under this [contract vehicle], and require written subcontractor acknowledgment of same.
2. Violation by a subcontractor of any provision set forth in this clause will be attributed to the Contractor.

11. TMS (Course Number 20939) and Instructions

[VA Identity and Access Management System \(IAM\)](#)

Contractor will be required to comply with any training requirements as necessary. Currently, course number TMS 20939 - VA Privacy Training for Personnel without Access to VA Computer Systems or Direct Access to or the Use of VA Sensitive Information is required. Employees will be required to sign stating that the training has been completed.

12. Attachments

- 12.1. Construction Specifications Volume 1 and Volume 2
- 12.2. Construction Drawings